

Present:

Mr. Justice Md. Shohrowardi

Criminal Revision No. 452 of 2009

Dipu Ranjan Das

...Convict-petitioner

-Versus-

The State

...Opposite party

No one appears.

...For the convict-petitioner

Mr. S.M. Golam Mostofa Tara, D.A.G with

Mr. A. Monnan, A.A.G

...For the State

Heard on 15.05.2024

Judgment delivered on 23.05.2024

On an application filed under Section 439 read with Section 435 of the Code of Criminal Procedure, 1898 Rule was issued calling upon the opposite party to show cause as to why the impugned judgment and order dated 17.11.2008 passed by Sessions Judge, Habiganj in Criminal Appeal No. 47 of 2008 affirming the judgment and order of conviction and sentence dated 14.07.2008 passed by Additional Chief Judicial Magistrate, Habiganj in C.R. Case No. 44 of 2002 (Baniachang) convicting the petitioner under Section 4 of the Dowry Prohibition Act, 1980 and sentencing him thereunder to suffer imprisonment for one year and one month should not be set aside and/or pass such other or further order or orders as to this Court may seem fit and proper.

The prosecution case, in a nutshell, is that the complainant Rina Rani Das is the wife of accused Dipu Ranjan Das. On 30.10.2001 corresponding to fifteenth Kartik, 1408 B.S. at about 5.00 pm the accused Dipu Ranjan Das along with other accused-persons came to the house of the father of the complainant and in presence of the witnesses, the accused Dipu Ranjan Das demanded Tk. 50,000 as cost of their marriage ceremony. He told the complainant that if she would not pay the said amount, he will not take her back to his house. The

complainant expressed the pecuniary difficulties of her family to the accused Dipu Ranjan Das and requested him to take her to his house without dowry. The accused did not take her to his house. He also disregarded the order of the Court passed in C.R. Case No. 35 of 1999.

After filing the complaint petition, the learned Magistrate examined the complainant Rina Rani Das under Section 200 of the Code of Criminal Procedure, 1898 and took cognizance of the offence under Section 4 of the Dowry Prohibition Act, 1980 against the accused Dipu Ranjan Das. On 21.10.2003, the accused Dipu Ranjan Das surrendered and he was granted bail. During trial, charge was framed against the accused Dipu Ranjan Das under Section 4 of the Dowry Prohibition Act, 1980. The prosecution examined total 4(four) witnesses to prove the charge against the accused. After concluding trial, the trial Court by judgment and order dated 14.07.2008 convicted the accused Dipu Ranjan Das under Section 4 of the Dowry Prohibition Act, 1980 and sentenced him thereunder to suffer imprisonment for 1(one) year and 1(one) month against which the convict-petitioner filed Criminal Appeal No. 47 of 2008 before the Sessions Judge, Habiganj who by impugned judgment and order dated 17.11.2008 affirmed the judgment and order passed by the trial Court against which the convict-petitioner obtained the instant Rule.

P.W. 1 Rina Rani Das is the complainant. She stated that she is the wife of the accused Dipu Ranjan Das. On fifteenth Kartik corresponding to 1408 B.S at about 5.00 pm the accused demanded Tk. 50,000 as dowry in presence of her mother Gita Rani Das, Rangini Das, Mahendra Das, Ful Miah and Abdul Khaleque. He also stated that if they would not pay the said amount, he would not take her. Earlier, she filed C.R. Case No. 35 of 1999 and the accused executed an agreement to take her to his house but ultimately, he did not take her to his house and further committed the offence. During cross-examination made by the Court, she stated that accused demanded Tk. 50,000 as dowry. He did not assault her. The accused did not take her to his house and again

married one Ratna Rani Das. She stated that she is the mother of Rima Rani Das and now she is residing in the house of her father.

P.W. 2 Gita Rani Das is the mother of P.W. 1. She stated that the accused Dipu is the husband of her daughter P.W. 1 Rina Rani Das. On fifteenth Kartik of 1408 B.S. at 5.00 pm in presence of Ful Mia, Abdul Khaleque Chowdhury, Biren Das, Rangini Das and Mahendra Das demanded Tk. 50,000 as dowry. She requested the accused to take his wife without dowry but he refused to take his wife without dowry. Now Rina Rani Das is residing along with her daughter in her house.

P.W. 3 Rangini Das stated that the complainant and the accused are known to her. On fifteenth Kartik 1408 B.S. at 5.00 pm he demanded Tk. 50,000 as dowry and the mother of the Rina Rani Das expressed her inability to pay the dowry. At that time, she along with Ful Mia, Abdul Khaleque Chowdhury, Biren and Mahendra were present. The accused demanded dowry sitting in the house of mother of Rina Rani Das. The accused refused to take Rina Rani Das to his house.

P.W. 4 Mahendra Das stated that the complainant and the accused are known to him. On fifteenth Kartik 1408 B.S. at 5.00 pm, the mother of the complainant called him to her house. He went to the house of Rina Rani Das and at that time, the accused Dipu demanded Tk. 50,000 as dowry. The complainant Rina Rani Das and her mother could not pay the dowry. Consequently, the accused Dipu Ranjan Das left the house without his wife.

No one appears on behalf of the convict-petitioner.

Learned Assistant Attorney General Mr. A. Monnan appearing on behalf of the State submits that the P.W. 1 is the complainant and the accused demanded Tk. 50,000 as dowry on fifteenth Kartik at about 5 pm sitting in the house of the father of the complainant and P.Ws. 2 to 4 corroborated the evidence of P.W. 1 Rina Rani Das as regards demand of dowry by the convict-petitioner. The prosecution proved the charge against the accused beyond all reasonable doubt and the Courts below arrived at a concurrent finding of fact that on the date and time

of occurrence, the accused demanded dowry. He prayed for discharging the Rule.

On perusal of the evidence, it appears that P.W. 1 Rina Rani Das stated that on fifteenth Kartik corresponding to 1408 B.S. at about 5.00 pm, the accused Dipu Ranjan Das sitting in the house of her father demanded Tk. 50,000 as dowry. Since her mother (P.W. 1) expressed their inability to pay the dowry, the accused refused to take her to his house and he again married another girl. The victim was residing in the house of her mother along with a minor daughter. The evidence of P.W. 1 as regards demand of dowry by the accused on the date and time is corroborated by P.Ws. 2 to 4. The defence did not cross-examine the prosecution witnesses. The evidence of P.Ws. 1 to 4 as regards demand of dowry by the accused is admitted by the defence. Therefore, I am of the view that both the Courts below on correct assessment and evaluation of the evidence adduced by the prosecution legally passed the impugned judgment and order.

I do not find any merit in the Rule.

In the result, the Rule is discharged.

The trial Court is directed to do the needful.

Send down the lower Court's records at once.